

Court No. - 3

Case :- WRIT - C No. - 22069 of 2022

Petitioner :- Rajendra Singh

Respondent :- State Of U.P. Through principal Secretary Electricity Govt. Of Up
And 3 Others

Counsel for Petitioner :- Dwijendra Prasad

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard Sri Dwijendra Prasad, learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel for the U.P. Power Corporation-respondent no.4.

This writ petition has been filed praying for the following reliefs:

"(i) Issue a writ, order or direction in the nature of certiorari quashing the impugned recover notice dated 20.09.2021 issued by respondent no.4 against the petitioner.

ii) Issue a writ, order or direction in the nature of mandamus directing the respondent no. 4 to decide the representation of the petitioner dated 06.12.2021 after provide the assessment letter to the petitioner.

iii) Issue a writ order or direction in the nature of mandamus directing the respondent no.4 to decide the representation of the petitioner.

Sri Baleshwar Chaturvedi, learned counsel for the respondent no.4/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/her objection under ***Para 6.8 of U.P. Electricity Supply Code, 2005*** before the respondent No. 4 within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.4 in accordance with law, expeditiously, preferably within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 10.8.2022

T.S.